



CITY OF MANCHESTER

PLANNING AND COMMUNITY DEVELOPMENT

Planning and Zoning
Building Regulation
Code Enforcement
Community Improvement Program

Jeffrey D. Belanger, AICP
Director

Nicola Strong
Deputy Director, Planning & Zoning

Michael J. Landry, PE, Esq.
Deputy Director, Building Regulations

VARIANCE NOTICE OF DECISION

Case #: ZBA2026-077

Property Location: 58 Myrtle Street

You are hereby notified that the request of:

ZFAB Enterprise, LLC (Owner)
c/o Zacchaeus Olunuze
71 Conant Street, #1
Manchester, NH 03102

to maintain the expansion of a parking area to create two new parking spaces in the front yard, located directly in front of the primary façade, that require backing out onto the sidewalk to exit through the curb cut, where the driveway width is 50' at the property line where 24' is allowed, where the two spaces are within 2' of the building and one space is undersized at 15' 5" where 18.5' is required, with lot coverage of 99% where 90% is allowed, and without the required Type I Landscape Buffer around the parking area in the **MX-2** Zoning District, from the terms of Section(s) **5.3.1.F.3.I Surface Parking Location, 7.5.2.B.2 Principal Frontage Parking, 7.5.2.D Safety of Parking Design, 7.4.2.A Maximum Driveway Width, 7.5.2.A Parking Setbacks (2 counts), 7.3-A.B Parking Layout, 5.3.1.F.3.H Maximum Lot Coverage, and 8.1.1.B Type I Landscape Buffer** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **DENIED** as per documents submitted through August 12, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s):

- Asphalt and subbase for parking spaces 1 and 2 are to be removed and replaced with loam and seed within 30 days of the date of this decision.
- The striped walkway to the front stairs may remain.
- The asphalt and subbase beyond tandem parking spaces 6 and 7 are to be removed 2' beyond the striped line parallel to the sidewalk and replaced with loam and seed within 30 days of the date of this decision.
- A 3' walkway is allowed to remain along the building leading from the tandem spaces to the rear entrance.
- A permit application with a plan showing areas of pavement removal shall be submitted and approved prior to removal of pavement.
- All remedial work including permitting, pavement subbase and subbase removal, and placement of loam and seed shall be performed within 30 days of the date of this decision.

Findings of Fact:

- The pavement was installed without prior review and approval.
- The proposal unreasonably increases impervious surface to 99%.

- Proposed parking spaces 1 and 2 cannot be accessed from the existing curb cut, but rather access requires driving along the sidewalk.
- Parking spaces 1 and 2 represent a hazard and pose a threat to pedestrian safety.

If denied, the decision is based on a finding that one or more the following five criteria was not satisfied:

- ☒ 1. The variance will not be contrary to the public interest.
- ☒ 2. The spirit of the ordinance is observed.
- ☒ 3. Substantial justice is done.
- ☐ 4. The values of surrounding properties are not diminished.
- ☒ 5. Literal enforcement of the provisions of the ordinance would result in an unnecessary hardship.

Explanation: _____

Signature: _____

Date: _____

Chairman Robert Breault, Zoning Board of Adjustment

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-055

Property Location: 218 South Lincoln Street

You are hereby notified that the request of:

218 AAA Revocable Family Trust (Owner)
c/o Albert J. Azzi, Trustee
218 South Lincoln Street
Manchester, NH 03103

Andrew Sullivan, Esq. (Agent)
24 Eastman Avenue
Bedford, NH 0311

to convert a two-family dwelling to a three-family dwelling in the **R-2** Zoning District, from the terms of Section(s) **4.3-A.1.C Multifamily Dwelling** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **DENIED** as per documents submitted through June 11, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): _____

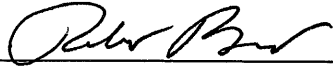
Findings of Fact:

- The property is one of the largest lots.
- The applicant chose to build large units, however there is no evidence that the home was originally designed to be a three-family dwelling.
- The spirit of the R-2 zoning district is to allow for a mix of one and two-family dwellings.
- Applicant's exhibit shows that the neighborhood has 41 single-family homes, five two-family dwellings, and one three-family dwelling.
- Converting the two-family dwelling to a three-family dwelling is not in the spirit of the ordinance and not in keeping with the character of the neighborhood.
- A three-family dwelling will not devalue surrounding properties.

If denied, the decision is based on a finding that one or more the following five criteria was not satisfied:

- ☒ 1. The variance will not be contrary to the public interest.
- ☒ 2. The spirit of the ordinance is observed.
- ☒ 3. Substantial justice is done.
- ☐ 4. The values of surrounding properties are not diminished.
- ☒ 5. Literal enforcement of the provisions of the ordinance would result in an unnecessary hardship.

Explanation: _____

Signature:  _____
Chairman Robert Breault, Zoning Board of Adjustment

Date: 9/14/2026

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-063

Property Location: 26 Titus Avenue

You are hereby notified that the request of:

T&L 2018 LLC (Owner)
156 Lowell Road
Hudson, NH 03051

The Dubai Group, Inc. (Agent)
c/o Doug MacGuire
36 Harvey Road
Londonderry, NH 03053

to construct two townhouse dwellings, one with eight units and the other with five units for a total of 13 multifamily dwelling units, on a lot with 49,484 SF where 78,000 SF is required, where both buildings are three stories in height where 2.5 stories is allowed and both buildings have a height of 38' where 35' is allowed, and where the parking area for the eight-unit building is within 20' of the building in the **R-1B** Zoning District, from the terms of Section(s) **4.3-A.1.C Multifamily Dwellings, 8.1.2 Planned Development Lot Area, 5.3.1.E Townhouse Building Type-Districts Permitted, 5.3.1.E.5.B Maximum Height in Stories, 5.3.1.E.5.C Maximum Height in Feet, 8.7.2.F.2 Parking Location for Planned Developments** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through June 22, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): _____

Findings of Fact:

- The lot is unique at 1.1 acres with steep slopes.
- The paper street provides an additional buffer from Mystic Street.
- The proposed planned development eliminates the need for individual curb cuts on Calef Rd. and preserves on-street parking.
- The property is located in a transitional area of large multi-family dwellings to the south, with a cemetery to the west, and a school to the east.
- The applicant reworked the plan to eliminate several counts.

Explanation: _____

Signature: _____
Chairman Robert Breault, Zoning Board of Adjustment

Date: 9/14/2026

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-072

Property Location: 50 Delia Drive

You are hereby notified that the request of:

Dennis and Debra Villiard (Owner)
50 Delia Drive
Manchester, NH 03102

to construct a 16' x 26' two-story addition to an existing detached two-story garage with an ADU on the second floor which will add approximately 416 SF and two bedrooms to the ADU which will result in a three-bedroom, single-family dwelling of 1,230 SF and a planned development with two principal structures on the lot, where the primary façade entrance is located on the second floor, where first-story primary façade transparency is 3.5% where 10% is required and with a blank wall of 18' where 15' is allowed in the **R-1B** Zoning District, from the terms of Section(s) **5.3.1.A.2.A Entrance Types Required, 5.3.1.A.6.A Minimum Transparency of First-Story Primary Façade, and 5.3.1.A.6.B Blank Wall Limitations for Primary Façade** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through July 30, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): _____

Findings of Fact:

- The property is located on a dead-end street.
- The lot is large.
- All setbacks are met.
- The request for relief is minor.

Required Action(s): Planned Development Approval

Explanation: _____

Signature: _____

Date: 9/14/2026

Chairman Robert Breault, Zoning Board of Adjustment

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-074

Property Location: 191 Portsmouth Avenue

You are hereby notified that the request of:

Samir Arnautovic (Owner)
191 Portsmouth Avenue
Manchester, NH 03109

to construct a 5' x 6' gabled awning over the front stairway with a 10' front yard setback where 20' is required in the **R-1B** Zoning District, from the terms of Section(s) **5.3.1.A.3.C Minimum Front Yard Setback** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through July 30, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): _____

Findings of Fact:

- The gabled awning will be an improvement to the appearance of the home.
- The front property line is approximately 9' from the roadway.
- Other homes in the area have similar front yard setbacks.

Explanation: _____

Signature: _____

Date: 9/14/2024

Chairman Robert Breault, Zoning Board of Adjustment

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-075

Property Location: 52 Faith Lane

You are hereby notified that the request of:

Ann Badeau (Owner)
52 Faith Lane
Manchester, NH 03103

to construct an attached accessory dwelling unit (ADU) with gross floor area equal to 43% of the gross floor area of the principal structure where 40% is allowed, and where the existing parking space and one new parking space will be located between the building façade and principal frontage in the **R-1B** Zoning District, from the terms of Section(s) **4.6.1.A.4.b Allowable Size of Attached Accessory Dwelling Unit** and **7.5.1.B.2 Parking Location** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through July 31, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): _____

Findings of Fact:

- The lot is large and setbacks are satisfied.
- The proposed addition will not alter the essential character of the neighborhood.

Explanation: _____

Signature: _____

Date: 9/14/2026

Chairman Robert Breault, Zoning Board of Adjustment

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-076

Property Location: 801 Hanover Street

You are hereby notified that the request of:

Aranosian Oil Co. (Owner)
Aranco Oil
557 North State Street
Concord, NH 03301

Eric M. Borsini (Applicant)
25 Portsmouth Avenue
Manchester, NH 03109

to establish a professional chiropractor office use, on a lot with 10,760 SF of buildable lot area where 15,000 SF is required, with parking in the front yard, where the required 5' landscape buffer is not maintained around the perimeter of the parking area, with wall signage area of 7.7% of the primary façade where 3% is allowed, and where the wall signs total 40.9 SF where 32 SF is allowed in the **R-1B** Zoning District, from the terms of Section(s) **4.3.1-A Medical Clinic**, **6.2-B.G Minimum Buildable Lot Area**, **6.2-B-I Surface Parking Location**, **8.1.3 Parking Lot Perimeter Landscape**, **9.6-A Allowable Signage (2 counts)**, and **9.2.10 Mural** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through August 8, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

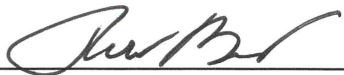
Condition(s): The illuminated sign shall be turned off by 10:00 pm.

Findings of Fact:

- The property has been vacant and blighted for over 20 years.
- Multiple variances were denied for other proposed uses.
- The parking, as proposed, removes impervious surface.
- The proposed use is low intensity and appropriate for the neighborhood.

Required Action(s): Site Plan Approval

Explanation: _____

Signature: 
Chairman Robert Breault, Zoning Board of Adjustment

Date: 9/14/2024

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-079

Property Location: Baker Street, Tax Map 735, Lot 19

You are hereby notified that the request of:

Beveylina Realty, LLC (Owner)
c/o Stanley Ziemba
155 Baker Street
Manchester, NH 03103

Boy Scout Troup #106 (Applicant)
c/o Ronald St. Cyr
202 Gold Street
Manchester, NH 03103

to establish a seasonal use of the sale of Christmas trees on the lot for a duration of 45 days where 30 days is allowed, with an office trailer on the lot located 1' from the front lot line where 10' is required, and install a 6' high temporary fence in the front yard where 4' is allowed in the **MX-1** Zoning District, from the terms of Section(s) **4.7.4 Seasonal Sales of Goods Not Produced on the Lot, 4.7.1.A.1 Duration of Seasonal Sales, 4.7.4.A.3 Accessory Structures Associated with Seasonal Sales, and 8.2.4-A Fence Height – Front Yard** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through August 14, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): _____

Findings of Fact:

- The lot is in the MX-1 zoning district.
- The weekday hours will be from 4:00 pm to 8:00 pm and weekend hours will be from 9:00 am to 9:00 pm.
- The use is seasonal and temporary.
- All equipment, trailers, and fencing will be removed at the end of the season.
- The proposed use will be compatible with the neighborhood.

Explanation: _____

Signature: 
Chairman Robert Breault, Zoning Board of Adjustment

Date: 9/14/2026

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-080

Property Location: 374 Thornton Street

You are hereby notified that the request of:

Jonathan and Krystal Venturini (Owner)
374 Thornton Street
Manchester, NH 03102

Joseph M. Wichert, LLS, Inc. (Agent)
802 Amherst Street
Manchester, NH 03104

to subdivide a lot to create one new buildable lot where proposed Lot 48 will remain improved with a single-family dwelling and detached garage with 13,040 SF of buildable lot area, and where proposed Lot 48B will have 13,955 SF of gross lot area, but only 1,812 SF of buildable land area due to steep slopes where 6,000 SF is required in the **MX-1** Zoning District, from the terms of Section(s) **5.3.1.B.3.G Minimum Buildable Lot Area for Lot 48B** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through August 14, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): Retaining walls visible from Janelle Ave. are to be adequately screened.

Findings of Fact:

- The lot is large and has tremendous grade change.
- The only count is related to the steep slopes.

Required Action(s): Subdivision Approval

Explanation: SCREENING BY VEGETATION

Signature: [Signature]
Chairman Robert Breault, Zoning Board of Adjustment

Date: 9/14/2026

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-081

Property Location: 975 Cedar Street

You are hereby notified that the request of:

JEN Homestead Revocable Trust (Owner)
975 Cedar Street
Manchester, NH 03103

Joseph M. Wichert, LLS, Inc. (Agent)
802 Amherst Street
Manchester, NH 03104

to maintain seven accessory structures, consisting of five sheds and two lean-tos, in the street yard of a through lot in the **MX-1** Zoning District, from the terms of Section(s) **5.6.2.A Accessory Structures in the Street Yard** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through August 14, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): Structures encroaching on the abutting property are to be relocated as indicated on the plan.

Findings of Fact:

- The lot is a through lot with frontage on both Cedar St. and Auburn St.
- The Auburn St. frontage has historically served as the property's rear yard.
- The resulting merged lot will have 29,794 SF.
- The frontage along Auburn St. is screened by a 6' high fence.

Explanation:

Signature: 
Chairman Robert Breault, Zoning Board of Adjustment

Date: 9/14/2026

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-082

Property Location: 800 Gold Street

You are hereby notified that the request of:

Oren H. & Beverly M. Stevens
Rev Tr (Owner)
297 Hazelton Avenue
Manchester, NH 03103

Downtown Dog Lodge, LLC
(Applicant)
c/o William Fagan
241 Washington Street
Methuen, MA 01844

Bernstein, Shur, Sawyer &
Nelson, PC (Agent)
c/o A. Eli Leino, Esq.
PO Box 1120
Manchester, NH 03105-1120

to establish an animal boarding use, including day care and training, on a lot with 30,608 SF where 45,000 SF is required in the **BC-2** Zoning District, from the terms of Section(s) **4.4.6.C.1 Animal Boarding Minimum Lot Area** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through August 17, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): _____

Findings of Fact:

- The property is located in the BC-2 Zoning District.
- The property abuts only commercial properties and no residential uses.
- The establishment of an animal boarding use in this neighborhood is reasonable.

Required Action(s): Conditional Use Permit for reduction in number of parking spaces.

Explanation: _____

Signature: _____

Date: 7/14/2026

Chairman Robert Breault, Zoning Board of Adjustment

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.



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VARIANCE NOTICE OF DECISION

Case #: ZBA2026-083

Property Location: 248 Vinton Street

You are hereby notified that the request of:

Susan Gaynor and Glenn Della Monica (Owner)
248 Vinton Street
Manchester, NH 03103

to maintain a deck with a ramp 2' from the rear lot line where 20' is required, maintain a covered deck in the rear yard 2' from the rear lot line where 4' is required, and maintain a small refuse toter storage box in the front yard in the **MX-1** Zoning District, from the terms of Section(s) **5.3.1.A.3.F Minimum Rear Yard Setback** and **5.6.2.C Accessory Structures in the Rear Yard**, and **5.6.2.A Accessory Structures in the Front Yard** of the Zoning Ordinance of the City of Manchester, New Hampshire, has been **GRANTED** as per documents submitted through August 21, 2026 in accordance with Article V of the Board's BY-LAWS on **September 10, 2026**,

Condition(s): _____

Findings of Fact:

- The lot is large and is a flag street.
- The structures are mostly pre-existing with minor modifications.
- The abutting properties to the rear on Brunelle Ave. have similar encroachments in the setbacks.

Explanation: _____

Signature: _____
Chairman Robert Breault, Zoning Board of Adjustment

Date: 9/14/2026

Note: Permits or other approvals as may be required for vesting must be obtained within two years of the date of the public hearing, or the variance will expire. Per RSA 677:2, any aggrieved person affected by the Board's decision may request a rehearing within 30 days.